

Legal Foundations of Student Affairs Practice

This chapter examines the legal foundations of student affairs practice and is particularly important for student affairs administrators (SAAs) because it addresses the fundamental legal issues that guide the field. From what I know now and from in-class discussion, the role of SAA is very dynamic and requires breadth of knowledge across many areas, from student services to administration. The SAA is a leader in higher education, and as such, your policies, practices, and decisions can affect students and faculty. That is why knowledge of the law is an essential part of responsibility. Given the legal ramifications, SAA needs to understand what one can and can't do at the local, state, and federal levels. When applying such a law, one needs to be fair and reasonable, and to enforce it equitably. More importantly, SAA should seek legal advice on the more controversial issues.

Both public and private institutions are subject to the law. The differences between public and private institutions are at the federal constitutional level. Here is the definition of public and private institutions under local, state, and federal law. A public institution is derived from its statutory or constitutional entitlement, and a private institution is derived from the institutional articles of incorporation, charter, or license (pg. 129).

Why do we need laws? The law is a set of rules established by a governing authority to institute and maintain orderly coexistence. Like any other organization at the local, state, and federal levels, student affairs institutions need rules and regulations. Laws are made to protect people and ensure they are not treated unfairly. The book mentions that the law is not something to be feared but rather provides a framework for guiding student affairs practice. That's why it's important for SAA to be familiar with the fundamental legal constraints and laws that apply to both their students and their institution.

One final note, SSA needs to be mindful of the law at each level of government, including local, state, federal, and institutional law. They have a responsibility for safety, security, faculty, and students at their institution. And one must take the law seriously, diligently, and apply it wisely. The law is not a perfect system, but it's about the greater good of society, and it always evolves over time. According to the book, the First, Fourth, Fifth, and Fourteenth Amendments to the United States Constitution provide the basis for applying constitutional law to higher education (pg. 129). SAA must be familiar with what they are. The role of SAA is highly dynamic and often involves wearing many hats. At times, SAA helps needy students, and at other times, it's disciplinary students.

Sources of Law (pg. 129)

1. The U.S. Constitution
2. State Constitutions
3. Statutes
4. Judicial Decisions
5. Administrative Rules and Regulations
6. Contracts
7. Institutional Rules and Regulations
8. Academic Tradition
9. Foreign or International Law

Constitutional Issues (pg. 132)

- Freedom of Religion
- Freedom of Speech
- Freedom of the Press
- Freedom of Association
- Freedom of Assembly
- Search and Seizure
- Due Process
- Equal Protection

Other Issues

Civil Rights Issues (pg. 137), Campus Safety and Security (pg. 140), Working with Legal Counsel, Emerging Issues (pg. 145)